

(5) No less restrictive means exist to achieve the overriding interest.

See CRC Rule 2.550(d)(1)-(5).

The law favors maximum public access to judicial proceedings and court records. *Alfaro v. Superior Court* (2020) 58 Cal.App.5th 371, 386, quoting *Pantos v. City and County of San Francisco* (1984) 151 Cal.App.3d 258, 262-63. “Judicial records are historically and presumptively open to the public and there is an important right of access which should not be closed except for **compelling** countervailing reasons.” *Id.* (emphasis added).

The unredacted versions of all pleadings were lodged for the Court’s review. The redacted portions and materials are represented to include private, non-public financial information related to a disputed debt, the inner financial workings and operations of a group of family owned businesses, and confidential employment and compensation information. See e.g. Yu Decl., ¶3. The Portions to be Sealed appear narrowly tailored.

The supporting declarations describe that the moving parties only seek to seal certain very specific portions of the subject pleadings. See e.g. Yu Decl., ¶12. For example, in the Declaration of Albert D. Seeno III in Support of Opposition to Albert D. Seeno Jr.’s Counter-Motion to Enforce Settlement Agreement filed January 27, 2026, a redaction appears at line 17. In the Opposition to Albert D. Seeno JR.’S Counter-Motion to Enforce Settlement Agreement filed January 27, 2026, contains targeted and narrowly tailored redactions throughout the document.

Accordingly, the Court finds that there exists an overriding interest that overcomes the right of public access to the specific Portions to be Sealed. The Court further finds that this overriding interest supports sealing the Portions to be Sealed and there exists a substantial probability that the overriding interest will be prejudiced if the Portions to be Sealed are not sealed. Subject to resolution of the issue discussed below, the Court further finds that the Portions to be Sealed are narrowly tailored and that there is no less restrictive means exist to achieve the overriding interest.

Disposition

The Court finds and orders as follows:

1. The Motions to Seal are GRANTED.
2. The Court shall issue the order after hearing.

3. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
***HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 664.6**
FILED BY: SEENO, ALBERT D., III
TENTATIVE RULING:

Before the Court is Defendant and Cross-Complainant Albert D. Seeno III’s and related entities’ (“Mr. Seeno-III”) motion to enforce settlement agreement pursuant to Code of Civil Procedure section

646.6. Plaintiff and Cross-Defendant Albert D. Seeno, Jr. and related entities (“Mr. Seeno-Jr”) oppose the motion and bring a counter motion to enforce settlement agreement. For the following reasons, both motions are **DENIED**.

Legal Standard

Code of Civil Procedure section 664.6 “provides a summary procedure to enforce a settlement agreement by entering judgment pursuant to the terms of the settlement. [Citation.] [It] states that if the parties to pending litigation enter into a settlement either in a writing signed by the parties or orally before the court, the court, upon a motion, may enter judgment pursuant to the terms of the settlement. The court retains jurisdiction to enforce a settlement under the statute even after a dismissal, but only if the parties requested such a retention of jurisdiction before the dismissal.” (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182, fn. omitted.) Before section 664.6 was enacted, if one party to a settlement agreement failed to perform one of its obligations, the party seeking to enforce the agreement often had to file a separate lawsuit for breach of the settlement agreement. Section 664.6 offers a more efficient alternative procedure for resolution of disputes that arise over settlement agreements.

Although a judge hearing a Section 664.6 motion “may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment,” the judge is not authorized to “create the material terms of a settlement[.]” (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810.) If there is no evidence establishing a manifestation of assent to the ‘same thing’ by both parties, then there is no mutual consent to contract and no contract formation.” (*Id.* at pp. 810–811; accord, *Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 208–209.) “Where the existence of a contract is at issue and the evidence is conflicting or admits of more than one inference, it is for the trier of fact to determine whether the contract actually existed.” (*Bustamante v. Intuit, Inc., supra*, at p. 208.)

Analysis

“The case law uniformly treats a settlement agreement as a contract subject to all the normal legal and statutory contractual requirements.” (*Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) A settlement agreement is “therefore governed by the same legal principles applicable to contracts generally.” (*In re Marriage of Hasso* (1991) 229 Cal. App. 3d 1174, 1180.)

A breach of contract requires: (1) the existence of the contract, (2) the plaintiff’s performance or excuse for nonperformance, (3) the defendant’s breach, and (4) the resulting damages to the plaintiff. (See *Reichert v. General Ins. Co.* (1968) 68 Cal.2d 822, 830.)

The Court has reviewed the operative portion of the settlement agreement as to which Mr. Seeno-III seeks partial judgment. (See Settlement Agreement, ¶4, Declaration of Charmaine G. Yu filed November 6, 2025, Exhibit B.)

The first sentence of Paragraph 4 of the Settlement Agreement addresses the assignment of certain stock at issue in the PCI Trust Case to Mr. Seeno-Jr (the “Subject Stock”). However, it is apparent that no such assignment of the Subject Stock has occurred as yet. At least no party asserts that it has.

It is also plain that such assignment is a condition precedent to the entitlement to the distribution described in the second sentence of Paragraph 4.

In the absence of the assignment under the first sentence, there is no breach of the second sentence. Whatever the hold-up may or may not be, there has been no showing that the assignment has occurred, and that Mr. Seeno-Jr has failed to perform his obligations under the second sentence notwithstanding the assignment having been done.

Indeed, the Court finds that Mr. Seeno-III's motion is not ripe for adjudication. He cannot purport to complain about the scope of the distribution where he has not satisfied the precondition to such distribution. "The ripeness requirement, a branch of the doctrine of justiciability, prevents courts from issuing purely advisory opinions. [Citation.] It is rooted in the fundamental concept that the proper role of the judiciary does not extend to the resolution of abstract differences of legal opinion." (*Pacific Legal Foundation v. California Coastal Com.* (1982) 33 Cal.3d 158, 170.)

As to Mr. Seeno-Jr's cross-motion, the Court is not persuaded that Mr. Seeno-Jr's interpretation is correct or that Mr. Seeno-Jr has demonstrated any basis for the relief sought. However, that controversy, if it may exist, is not ripe as described above.

In light of the above, both motions are **DENIED**. The Court admonishes all parties and their counsel that the time and effort put into these cross-motions could have more effectively been brought to bear on effectuating the settlement terms and concluding the myriad matters that the settlement was intended to end.

The Court issue shall the order after hearing.

4. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
*HEARING ON MOTION IN RE: TO SEAL
FILED BY: SEENO, JR., ALBERT D.
TENTATIVE RULING:

See Add-On LINE 2, above.

5. 9:00 AM CASE NUMBER: C22-01746
CASE NAME: ALBERT SEENO, JR. VS. ALBERT SEENO, III
*HEARING ON MOTION IN RE: TO SEAL
FILED BY: SEENO, ALBERT D., III
TENTATIVE RULING:

See Add-On LINE 2, above.